

LEGISLATIVE ASSEMBLY OF VICTORIA

VOTES AND PROCEEDINGS

No 159

No 159 — Tuesday 9 December 2025

The House started at 11.00 am.

- 1 The House met according to the resolution of the House on 3 December 2025 — The Speaker took the Chair, read the Prayer and made an Acknowledgement of Country.
- 2 **APOLOGY TO THE FIRST PEOPLES OF VICTORIA** — Jacinta Allan tabled the statement of Apology to the First Peoples of Victoria.

Ordered to be published.

- 3 **APOLOGY TO THE FIRST PEOPLES OF VICTORIA** — Motion made and question — That this House endorses the Apology to First Peoples tabled today, acknowledges the past laws, policies, and practices that have contributed to systemic injustice for First Peoples and affirms that under Treaty, Victorians will move together toward a new and better future (*Jacinta Allan*) — after debate, put.

The House divided (the Speaker, Maree Edwards, in the Chair) —

AYES 56

Juliana Addison; Jacinta Allan; Colin Brooks; Josh Bull; Anthony Carbines; Ben Carroll; Anthony Cianflone; Chris Couzens; Jordan Crugnale; Lily D'Ambrosio; Daniela De Martino; Gabrielle de Vietri; Steve Dimopoulos; Paul Edbrooke; Eden Foster; Will Fowles; Matt Fregon; Ella George; Luba Grigorovitch; Bronwyn Halfpenny; Katie Hall; Paul Hamer; Martha Haylett; Mathew Hilakari; Melissa Horne; Natalie Hutchins; Lauren Kathage; Sonya Kilkenny; Nathan Lambert; John Lister; Gary Maas; Alison Marchant; Kathleen Matthews-Ward; Steve McGhie; Paul Mercurio; John Mullahy; Danny Pearson; Tim Read; Pauline Richards; Tim Richardson; Ellen Sandell; Michaela Settle; Ros Spence; Nick Staikos; Natalie Suleyman; Meng Heang Tak; Jackson Taylor; Nina Taylor; Kat Theophanous; Mary-Anne Thomas; Emma Vulin; Iwan Walters; Vicki Ward; Dylan Wight; Gabrielle Williams; Belinda Wilson.

NOES 27

Brad Battin; Jade Benham; Roma Britnell; Tim Bull; Martin Cameron; Annabelle Cleeland; Chris Crewther; Sam Groth; Matthew Guy; David Hodgett; Emma Kealy; Tim McCurdy; Cindy McLeish; James Newbury; Danny O'Brien; Michael O'Brien; Kim O'Keeffe; John Pesutto; Richard Riordan; Brad Rowswell; David Southwick; Bridget Vallence; Peter Walsh; Kim Wells; Nicole Werner; Rachel Westaway; Jess Wilson.

Question agreed to.

4 **DOCUMENTS TABLED UNDER ACTS OF PARLIAMENT** — The Clerk tabled:

Financial Management Act 1994 — 2025–26 Budget Update (incorporating Quarterly Financial Report for the quarter ending on 30 September) — released on 5 December 2025

Mental Health and Wellbeing Commission — Report 2024–25

Mental Health Tribunal — Report 2024–25

Planning and Environment Act 1987 — Notices of approval of amendments to the following Planning Schemes:

Ballarat — C249

Wangaratta — C83

Warrnambool — C216

Yarra Ranges — C230

Recreational Fishing Licence Trust Account — Report 2024–25 on the disbursement of revenue

Statutory Rules under the following Acts:

Children, Youth and Families Act 2005 — SR 131

Criminal Procedure Act 2009 — SR 131

Liquor Control Reform Act 1998 — SR 129

Magistrates' Court Act 1989 — SRs 132, 133, 134

Subordinate Legislation Act 1994 — SR 130

Subordinate Legislation Act 1994 — Documents under s 15 in relation to Statutory Rules 129, 135

Victorian Collaborative Centre for Mental Health and Wellbeing — Report 2024–25.

PROCLAMATIONS — Under SO 177A, the Clerk tabled the following proclamations fixing operative dates:

Roads and Ports Legislation Amendment (Road Safety and Other Matters) Act 2025 — Division 1 of Part 5 and ss 9, 14, 23, 24, 29 to 37, 40 to 42 and 62 to 64 — 3 December 2025; Part 7, Divisions 3 and 4 of Part 9 and ss 82 and 83 — 1 January 2026 (*Gazette S672, 2 December 2025*)

Tobacco Amendment (Tobacco Retailer and Wholesaler Licensing Scheme) Act 2024 — Remaining provisions — 1 February 2026 (*Gazette S648, 25 November 2025*)

Transport Legislation Amendment (Vehicle Sharing Scheme Safety and Standards) Act 2025 — Part 1 and ss 3, 4 and 5 — 3 December 2025 — (*Gazette S672, 2 December 2025*)

Victorian Early Childhood Regulatory Authority Act 2025 — Whole Act — 1 January 2026 (*Gazette S672, 2 December 2025*).

5 **MESSAGE FROM THE LEGISLATIVE COUNCIL** — Agreeing to the Justice Legislation Amendment (Community Safety) Bill 2025 without amendment.

6 **MESSAGE FROM THE LEGISLATIVE COUNCIL** — Agreeing to the Social Services Regulation Amendment (Child Safety, Complaints and Worker Regulation) Bill 2025 with amendments.

Ordered — That the amendments be taken into consideration later this day.

7 **MESSAGE FROM THE GOVERNOR — ASSENT TO BILLS** — Informing the Legislative Assembly that she had, today, given the royal assent to the following bills, presented to her by the Clerk of the Parliaments:

Crimes Amendment (Retail, Fast Food, Hospitality and Transport Worker Harm) Bill 2025

Early Childhood Legislation Amendment (Child Safety) Bill 2025

Justice Legislation Amendment (Community Safety) Bill 2025

Justice Legislation Amendment (Police and Other Matters) Bill 2025

Transport Legislation Amendment Bill 2025.

8 **PERFORMANCE AUDIT OF THE INDEPENDENT BROAD-BASED ANTI-CORRUPTION COMMISSION AND INTEGRITY OVERSIGHT VICTORIA** — Motion made, by leave, and question — That:

(1) Under section 170(1) of the *Independent Broad-based Anti-corruption Act 2011* and section 90D(1) of the *Integrity and Oversight Victoria Act 2011*:

(a) O'Connor Marsden and Associates Pty Ltd (O'Connor Marsden) be appointed to conduct the performance audits of the Independent Broad-based Anti-corruption Commission (IBAC) and Integrity Oversight Victoria (IOV);

(b) in accordance with the Agreement for the provision of services for the performance audits of the IBAC and IOV;

(c) the level of remuneration be \$397,485 (including GST) in respect of the performance audit of IBAC, to be paid upon completion of the following:

(i) \$79,497 (including GST) upon Parliament's acceptance of O'Connor Marsden's audit plan, representing 20 per cent of the total fee;

(ii) \$119,245.50 (including GST) upon Parliament's acceptance of O'Connor Marsden's progress report, representing 30 per cent of the total fee;

(iii) \$198,742.50 (including GST) upon Parliament's acceptance of O'Connor Marsden's final draft report, representing 50 per cent of the total fee; and

(d) the level of remuneration be \$205,700 (including GST) in respect of the performance audit of IOV, to be paid upon completion of the following:

- (i) \$41,400 (including GST) upon Parliament's acceptance of O'Connor Marsden's audit plan, representing 20 per cent of the total fee;
- (ii) \$61,710 (including GST) upon Parliament's acceptance of O'Connor Marsden's progress report, representing 30 per cent of the total fee;
- (iii) \$102,850 (including GST) upon Parliament's acceptance of O'Connor Marsden's final draft report, representing 50 per cent of the total fee.

(2) A message be sent to the Legislative Council requesting their agreement —

(Mary-Anne Thomas) — put and agreed to.

9 **SITTING OF THE HOUSE** — Motion made and question — That the House, at its rising, adjourns until 3 February 2026 *(Mary-Anne Thomas)* — put and agreed to.

10 **STATEMENTS BY MEMBERS** — Members made statements.

11 **ELECTORAL AMENDMENT BILL 2025** — Mary-Anne Thomas tabled a statement of compatibility in accordance with the *Charter of Human Rights and Responsibilities Act 2006*.

Motion made and question proposed — That this Bill be now read a second time *(Mary-Anne Thomas)*.

The second reading speech was incorporated into Hansard.

Motion made and question — That the debate be now adjourned *(James Newbury)* — put and agreed to.

Ordered — That the debate be adjourned for two weeks. Debate adjourned until 23 December 2025.

12 **ENTITIES LEGISLATION AMENDMENT (CONSOLIDATION AND OTHER MATTERS) BILL 2025** — Danny Pearson tabled a statement of compatibility in accordance with the *Charter of Human Rights and Responsibilities Act 2006*.

Motion made and question proposed — That this Bill be now read a second time *(Danny Pearson)*.

The second reading speech was incorporated into Hansard.

Motion made and question — That the debate be now adjourned *(James Newbury)* — put and agreed to.

Ordered — That the debate be adjourned for two weeks. Debate adjourned until 23 December 2025.

- 13 **COMMUNITY LEADERS** — Motion made and question — That this House records its sincere thanks to community leaders across Victoria, particularly those who have stood with Victorians targeted by vilification and division arising from recent anti-immigration protests, for their steadfast commitment to a safe, united and multicultural Victoria (*Mary-Anne Thomas*) — and after debate —

Amendment proposed — That the words ‘anti-immigration’ be omitted (*Matthew Guy*) — and, after debate —

Business interrupted at 2.00 pm under the resolution of the House on 3 December 2025.

- 14 **QUESTION TIME.**

- 15 **CONSTITUENCY QUESTIONS.**

- 16 **COMMUNITY LEADERS** — Debate continued on question — That the motion be agreed to — and on the amendment.

Motion made and question — That the debate be now adjourned (*Steve Dimopoulos*) — put and agreed to.

Ordered — That the debate be adjourned until later this day.

- 17 **MESSAGE FROM THE LEGISLATIVE COUNCIL** — Agreeing to appoint O’Connor Marsden and Associates Pty Ltd to conduct the performance audits of the Independent Broad-based Anti-corruption Commission and Integrity Oversight Victoria.

- 18 **SOCIAL SERVICES REGULATION AMENDMENT (CHILD SAFETY, COMPLAINTS AND WORKER REGULATION) BILL 2025** — Order read for the consideration of the amendments made by the Legislative Council.

After debate, the amendments were agreed to.

Message sent to the Legislative Council informing them accordingly.

Business interrupted at 5.00 pm under the resolution of the House on 3 December 2025.

- 19 **ADJOURNMENT** — The Speaker announced that the time for the adjournment of the House had arrived and, after debate, left the Chair at 5.25 pm.

BRIDGET NOONAN
Clerk of the Legislative Assembly

MAREE EDWARDS MP
Speaker